



NEW HAMPSHIRE
DEPARTMENT OF
HEALTH AND
HUMAN SERVICES

STATE OF NEW HAMPSHIRE

***TEMPORARY ASSISTANCE FOR NEEDY FAMILIES
(TANF) State Plan
Effective October 1, 2023***

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Contents

INTRODUCTION	3
PURPOSE	3
ORGANIZATION OF THE PLAN	3
BACKGROUND	3
GENERAL PROVISIONS	4
Section 42 USC 602 (a) (1) (A) (i) of the Act:	4
TANF ASSISTANCE CATEGORIES	8
TANF NUTRITIONAL ASSISTANCE	8
TANF NON ASSISTANCE PROGRAMS	9
Section 402(a)(1)(A)(ii) of the Act:	9
Section 402(a)(1)(A)(iii) of the Act:	10
Section 402(a)(1)(A)(iv) of the Act:	12
Section 402(a)(1)(A)(v) of the Act: Establish goals and take action to prevent and reduce the incidence of out-of-wedlock pregnancies, with special emphasis on teenage pregnancies, and establish numerical goals for reducing the illegitimacy ratio of the State (as defined in section 403(a)(2)(B).	14
Section 402(a)(1)(A)(vi) of the Act:	16
Section 402(a)(1)(A)(vii) of the Act:	16
Section 402(a)(1)(A)(viii) of the Act:	16
SPECIAL PROVISIONS	19
Section 402(a)(1)(B)(i) of the Act:	19
Section 402(a)(1)(B)(ii) of the Act:	19
Section 402(a)(1)(B)(iii) of the Act:	20
Section 402(a)(1)(B)(iv) of the Act:	23
Section. 6701-6703 of (P.L. 111-148) Title VI, Subtitle H of the Patient Protection and Affordable Care Act of 2010:	23
POLICY CHANGES and CLARIFICATIONS	24
Policy Changes and Clarifications	24
Cliff Effect Initiative	28
ATTACHMENT A	30
EXECUTIVE CERTIFICATIONS	30
CHILD SUPPORT ENFORCEMENT PROGRAM	30
FOSTER CARE AND ADOPTION ASSISTANCE PROGRAM	30

ADMINISTRATION OF THE PROGRAM.....	30
EQUITABLE ACCESS TO ASSISTANCE FOR INDIAN TRIBES	31
PROGRAM FRAUD AND ABUSE	31
AVAILABILITY OF STATE PLAN.....	31
STANDARDS AND PROCEDURES TO ENSURE THAT THE STATE WILL SCREEN FOR AND IDENTIFY SEXUAL HARASSMENT, DOMESTIC VIOLENCE, SEXUAL ASSAULT, AND STALKING	31
SEXUAL HARASSMENT DEFINED.....	32
DOMESTIC VIOLENCE DEFINED	32
SEXUAL ASSAULT DEFINED	33
STALKING DEFINED	33
ATTACHMENT B.....	35
PUBLIC NOTICE.....	35
ATTACHMENT C.....	36
MAINTENANCE OF EFFORT (FFY 2023).....	36
ATTACHMENT D	37
NEW HAMPSHIRE ELIGIBILITY FOR EMERGENCY ASSISTANCE TO NEEDY FAMLIES WITH CHILDREN - AUTHORIZED SOLELY UNDER PRIOR LAW.....	37

INTRODUCTION

PURPOSE

This document is the State of New Hampshire's plan for providing financial assistance to families with children from funds provided under Title I of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (Public Law 104-193) and amended by the Deficit Reduction Act of 2005. The Act amended Section 402 of the Social Security Act to require that states submit a plan to the U.S. Department of Health and Human Services that outlines how the state will provide Temporary Assistance for Needy Families (TANF) benefits.

Since the adoption of the original state plan in October 1996, New Hampshire's TANF program has continued to evolve. An amendment submitted in March 2011 incorporated all changes made from October 1, 2006, to that date. That amended plan provided all changes necessary for New Hampshire to retain its status as an eligible state under the reauthorization of the TANF program provided by the Deficit Reduction Act. The State Plan continues to incorporate all changes made from the original State Plan to the current State Plan effective October 1, 2023. Any changes made during the 27 months of this current plan will be amended within 30 days of the change.

ORGANIZATION OF THE PLAN

The sections in this document correspond to the organization of the language in the Social Security Act ("the Act") that describes the requirements of TANF state plans, including general provisions, special provisions, and optional provisions relative to the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (PRWORA). Attachment A contains the state's executive certifications; Attachment B contains the text of the public notice advertising availability of the 2023 TANF plan; Attachment C explains uses of maintenance of effort funds and is updated each year as these uses change; and, Attachment D describes the State's procedure to determine when an individual has demonstrated an inability to obtain needed childcare including how the parent is informed about the procedure and their right to an appeal.

BACKGROUND

In New Hampshire, TANF provides temporary financial assistance to families who are low-income and have dependent children under age 18, or up to age 20, if enrolled full-time in high school or a high school equivalency program, these dependent children must also be facing economic instability while meeting at least one of the TANF deprivation requirements. The state maintains four different eligibility categories and one category of nutritional assistance. Each eligibility category provides the same level of financial assistance. Changes in a family's circumstances, such as the age of a child or the presence of a disability, move the recipient from one TANF category to another.

GENERAL PROVISIONS

Section 42 USC 602 (a) (1) (A) (i) of the Act: Conduct a program, designed to serve all political subdivisions in the State (not necessarily in a uniform manner), that provides assistance to needy families with (or expecting) children and provides parents with job preparation, work, and support services to enable them to leave the program and become self-sufficient.

The New Hampshire Department of Health and Human Services (DHHS) is the single State agency that administers the Temporary Assistance for Needy Families (TANF) program. Under TANF, financial assistance benefits are provided to families who are in need with children. New Hampshire does not provide TANF benefits to pregnant women who do not have any other children. For eligible families, parents are provided with job preparation, work, and support services.

The program operates uniformly in all parts of the State. DHHS provides access to the supports of the TANF program through 12 District Offices located throughout the state, administered by the Bureau of Family Assistance (BFA).

The policies through which DHHS administers the TANF program are located in the Family Assistance Manual on the New Hampshire Department of Health and Human Services website, which is located at [Family Assistance Manual \(nh.gov\)](#).

All New Hampshire residents may apply for TANF financial assistance and can expect a fair determination of eligibility for services under the policies described above. All individuals who apply for assistance are advised of their rights and responsibilities as a part of the application protocol. It is the policy of DHHS not to discriminate against people because of their age, sex (including pregnancy, sexual orientation, gender identity, and sex characteristics), race, color, creed, color, marital status, physical or mental disability, religion, national origin or political affiliation or belief. There is no discrimination in accepting or providing services, or the admission or access to, or treatment or employment in, any of DHHS's programs or activities. Individual rights and responsibilities, the non-discrimination policy and the application process are located in the Family Assistance Manual under:

[Section 101- Individual Rights and Responsibilities](#)

[Section 103- Nondiscrimination](#)

[Section 109- Application Process](#)

New Hampshire residents have the choice to apply for services via fax, paper application, and the NH Easy on-line portal at <https://nheasy.nh.gov> or by telephone application by calling the Customer Service Center. Clients may also choose to manage their case on-line by establishing a NH Easy account and conducting the eligibility operations through that account. TANF financial assistance applicants have access to applications for SNAP, Medicaid, and Child Care services through the same operation.

New Hampshire accepts applications and redeterminations via paper, electronic transmission, and by telephone. Electronic signatures were accepted beginning September 23, 2009, via the on-line NH Easy system, and as of October 5, 2011, the telephonic signature process was approved to be acceptable for TANF applications and redeterminations.

New Hampshire uses document imaging, eliminating the need for the storage of paper records to verify eligibility. All verifications required to determine and maintain eligibility are scanned into a central

database and delivered to individual electronic files, accessible from all District Offices by pertinent staff. Prior paper eligibility records were scanned and delivered to individual e-files for access and ongoing record keeping. The database is accessible through the New HEIGHTS eligibility system, and documents are sorted both by the case they belong to and by the worker assigned to that case. Workers have an electronic dashboard that tracks the number of unprocessed documents in the database. The digitalization of District Office client files allows DHHS a greater degree of administrative efficiency managing caseloads and offers clients an enhanced level of access to their file information regarding application and eligibility, where recipients can report changes and upload verifications directly to their case through their NH Easy account. If an applicant is having difficulty providing verifications, the Family Services Specialist can make a collateral contact for verification. If that is not possible, DHHS has the flexibility, as needed for alternatives, such as a signed declaration.

New Hampshire defines “family” as one or more adults and children who are related by blood, marriage, or adoption, as well as children living under the care of an unrelated court appointed guardian who reside in the same home.

To be eligible for any of the financial programs offered under the TANF program, families must have an eligible dependent child, and the eligible dependent child must meet all of the following categorical criteria: live with a specified relative, deprivation of support or care of a parent, and meet the age requirement. Assistance groups are comprised of all children who are blood, adoptive, or step-related siblings, provided they, live with a specified relative; are under the age of 18 or are under age 20 and are full-time students in a secondary school or its equivalent; meet all nonfinancial criteria for TANF; and are deprived of parental support or care. A child is considered deprived of the support or care of a parent when a parent has died; there is continued absence of a parent from the home; or there is a physical or mental incapacity of a parent. More information regarding an eligible dependent child is located in the Family Assistance Manual under: [Section 207.03 - Eligible Dependent Child as requirement for TANF](#)
[Section 207.05 - Living with a Specified Relative](#)
[Section 207.07 - Dependent Children who are Student \(18 or 19 year olds\)](#)
[Section 207.09 - Deprivation of the Support or Care of a Parent](#)
[Section 207.11 - When a Dependent Child Reaches Maximum Age](#)
[Section 207.13 - Verifications needed for of an Eligible Dependent Child](#)

All natural, adoptive, and step-related parents of the children must also be included in the assistance group. For eligible families with unmarried cohabitating adults who share a common child, the cohabitating adult and the common child(ren)’s income, resources, and needs are considered when determining eligibility however the minor “common” child and cohabitating adult are “counted” in the assistance group (AG) and not considered TANF recipients. More specific information regarding household composition is in the Family Assistance Manual under Composition of Assistance:

[Section 211.01 - Who Must Be Members](#)
[Section 211.03 - Disqualified Individuals](#)
[Section 211.09 - Who May Be Members](#)
[Section 211.11- Who is Not a Member](#)

A child is not deprived of parental support or care when the parents share 50/50 custody of the child(ren). More information regarding deprivation and eligibility requirements for TANF is located under Section 209 of the Family Assistance Manual:
[Section 209.01-Eligibility Requirements](#)

New Hampshire [RSA 167:78, XXIII](#) and [RSA 167:6,V](#) have been modified to include “court-appointed guardians” (non-related legal guardians) as meeting the definition of a specified relative. A court appointed guardian is a legal guardian who takes care of a person who is unable to take care of themselves and may or may not be a relative. As of 10/1/23, assistance groups with minor dependent children being cared for by a court appointed guardian, regardless of if that guardian is a relative or not, shall have the same eligibility as a relative when specified relative is used in making determinations for TANF financial programs. These guardians can apply and receive financial assistance on behalf of the dependent child(ren) if all other eligibility requirements have been met.

Individuals applying for TANF cash assistance must meet the non-financial criteria by providing proof of identity, New Hampshire residence, U.S. citizenship or eligible qualified alien, and social security number of all members of the assistance group prior to receiving benefits. Additional details are located under the following sections in the Family Assistance Manual:

[Section 301.07 - Verification of Identity](#)

[Section 303.01- Residence for Eligibility](#)

[Section 305.01- Definition of U.S Citizen](#)

[Section 305.09 - Determining Qualified Alien](#)

[Section 305.11 - Eligibility for Certain Qualified Aliens](#)

[Section 305.13 - Qualified Aliens Eligible Without Restriction](#)

[Section 305.17- Qualified Aliens with Restricted Eligibility Based on Date into the U.S](#)

[Section 309.01- SSN Eligibility and Applicant Notification Requirement](#)

Specified relatives, whether in the cash AG or not, must cooperate with efforts to obtain support, identify liable relatives, and establish the paternity of a child for whom assistance is requested. Specified relatives are required to cooperate with efforts to obtain child support unless they can provide a good cause reason for not cooperating. Specified relatives included in the cash AG who fail to cooperate with the Bureau of Child Support Services (without good cause) are subject to sanction.

Households applying for or receiving TANF financial assistance must apply for and fully pursue all potential sources of income or benefits available to any member of the assistance group.

[Section 317.01 - Potential Sources of Income](#)

[Section 317.07 - Cooperation Requirements for Developing Potential Sources of Income](#)

Individuals who apply for TANF cannot be a fugitive felon or a violator of probation or parole.

[Section 319 - Fugitive Felons and Violators of Probation or Parole](#)

In addition to categorical and general requirements, an assistance group must meet financial eligibility requirements in order to receive assistance. Financial requirements are broken into two components:

- income, and
- resources

An assistance group meeting the income requirements is income eligible. An assistance group meeting the resource requirements is resource eligible. The assistance group is determined to be financially eligible if it meets both income and resource requirements.

General income information is in the Family Assistance Manual under:

[Section 503 - Available Income,](#)

[Section 505 - Whose Income Counts?](#)

[Section 507 - Treatment of Income](#)

[Section 509 - Verification](#)

[Section 511- Common Types of Income](#)[Section 513 - Less Common Types of Income](#)

General resource information is in the Family Assistance Manual under:

[Section 403 - Resource Limits](#)[Section 405 - Whose Resources Count?](#)[Section 409 - Common Types of Resources](#)[Section 411 - Less Common Types of Resources](#)[Section 413 - Verification of Resources](#)[Section 415 - Transfer of Property](#)

The amount of financial assistance provided to the family is based on family size, the Federal Poverty Guidelines (FPG) along with family income. The amount of financial assistance listed in the “Payment Standards” is set at 60% of the FPG by [RSA 167:77-g](#), to be updated each year.

Detailed information regarding standards and budgets is located in the Family Assistance Manual under the following:

[Section 601- Income Limits, Payment Standards, and Allotments](#)[Section 603 - Deductions and Disregards](#)[Section 603.01- Earned Income Disregards](#)[Section 603.03 - Employment Expenses Disregard](#)[Section 603.05 - Child/Dependent Care Deduction](#)[Section 603.09 - Other Allowable Deductions](#)[Section 613 - Grant Determination](#)[Section 615 - Benefits: Determination, Frequency, and Issuance](#)[Section 607- Conversion to Monthly Amounts](#)[Section 609 - Fluctuating Income](#)[Section 609.01 - Averaging Fluctuating Income](#)[Section 609.03 - Time Frames for Using Averaged Fluctuating Income](#)[Section 611- Income Budgeting](#)[Section 315.05 - Sanctions/Disqualification for Voluntary Quit](#)

Details pertaining to benefit application, the interview process as well as the reporting requirements for TANF assistance is in the Family Assistance Manual under:

[Section 109 - Application Process](#)[Section 109.01- Filing an Application](#)[Section 109.03 - Processing a Filed Application](#)[Section 109.13 - Concurrent Receipt of Financial Assistance](#)[Section 117- Application Processing Timeframes](#)[Section 123 - Benefit Delivery Time Frame](#)[Section 127- Interviews](#)[Section 133 - Length of Eligibility](#)[Section 135 - Providing Notices to Individuals](#)[Section 141 - Advance Notice Period](#)[Section 145.01- Reporting Requirements](#)

Financial assistance is determined for a specific time period called the eligibility period. At the end of the eligibility period, benefits continue automatically until there is an action to terminate assistance. Eligibility for all individuals is redetermined at regularly scheduled intervals. Information regarding these redeterminations is in the Family Assistance Manual under:

[Section 161- Redetermination](#)

[Section 161.01- Timely Notice](#)

[Section 161.03 - Required Verification for Redetermination](#)

[Section 161.05 - Processing Redeterminations](#)

[Section 161.07-Termination at Redetermination](#)

TANF ASSISTANCE CATEGORIES

New Hampshire Employment Program (NHEP) is an employment support program that provides financial assistance to eligible families with able-bodied parents or specified relatives and assists those individuals with upward economic mobility through the provision of employment supports and training services. The goals of the NHEP is to put individuals and their families first while strengthening resources, and local access to support, giving them the chance to thrive and succeed at work and home.

Families With Older Children (FWOC) provides financial assistance to families that include a child who is 19 years old, up to age 20 who are still full-time students in high school, or at the equivalent level of vocational or technical training. These children meet the definition of a dependent child under the State of New Hampshire law, but not under federal regulations. The FWOC program has a mandatory work requirement for the able-bodied parents or specified relatives and provides the same employment and training supports as the New Hampshire Employment Program.

The goal of the FWOC program is to allow teenagers who are low-income the opportunity to complete basic education with the benefit of their parent(s) or specified relative(s) having a financial safety net while working with the employment support program.

Interim Disabled Parent (IDP) provides financial assistance to families in which at least one parent or specified relative is temporarily unable to participate in work programs due to their own medical condition or disability. The IDP program has a mandatory work requirement only for the able-bodied adult in the household and provides the same employment and training supports as the mandatory work program for the able-bodied adult. The goals of the IDP program are to provide financial assistance that allows a family to care for children in their own home during times of short term physical and/or psychological disability while offering employment support services to the parent who is able to work.

Family Assistance Program (FAP) provides financial assistance to families in which the children do not receive the care of both parents due to continued absence or disability. The children may be cared for by the disabled parent(s) or by a specified relative providing care for the child(ren) who is not the parent. The specified relative may or may not be included in the case for determining eligibility. FAP has no mandatory work requirements.

TANF NUTRITIONAL ASSISTANCE

Nutritional Supplement for Working Families (NSWF) Effective October 1, 2011, New Hampshire established a new TANF nutritional program for families who are low-income, at or below 185% FPG, and receiving the Supplemental Nutrition Assistance Program (SNAP) benefits. NSWF provides a twice-monthly nutritional assistance stipend. This program helps the family purchase their food, leaving more income for shelter, transportation, child care, and other family necessities. The program design makes NSWF assistance available to single-parent families who are receiving SNAP benefits, have a child less than 18 years of age in the house, and are working at least 35 hours every week. This is a separate state

program financially supported with state funds. The funds count towards the State's Maintenance of Effort (MOE) and the state in turn counts these families in their state work participation rate.

TANF NON-ASSISTANCE PROGRAMS

Emergency Assistance (EA) is available to TANF-eligible families that include at least one child under the age of 18 and a family income at or below the standard of need. EA is a non-recurring, short term benefit to obtain or retain safe and healthy housing, mortgage and utility arrearages, rent and utility deposits, and fuel deliveries. More information regarding Emergency Assistance eligibility is in the family assistance manual under:

[Section 703.01 - Purpose](#)

[Section 703.05 - Emergency Assistance Eligibility Requirements](#)

In addition, emergency assistance payments for family preservation are available through DHHS' Division for Children, Youth, and Families (DCYF). DCYF administers this program that is authorized solely under prior law and is responsible for determining eligibility for and authorization of these EA payments when a child is experiencing an emergency due to child abuse, neglect, abandonment; the imminent risk of the child's removal from the home; or an urgent situation where continued presence in the home is not in the best interest of the child. Please see Attachment D for more information regarding EA authorized solely under prior law.

TANF Information and Referral Service provides families whose income is at or below 200% FPG and are eligible for SNAP benefits with information and referral to other available assistance.

Comprehensive Family Support Services (CFSS) assist pregnant and parenting women and other families with children up to the age of 18 years by providing services that promote family wellness, decreasing family stressors and preventing child abuse and neglect. Support programs include parent education (such as co-parenting support, positive behavior intervention, and position parenting practices), parenting support groups, connection to benefits, as well as resource and referral navigation. These community-based programs are designed to enable families to access the services they need and want in their own communities. The program has several funding sources. TANF funding is drawn down for those services provided to families with at least one child under the age of 18 and a family income at or below 250% FPG.

Roadmap to Reunification is a program administered by DCYF. The goal of the program is to have contracted facilitators bring together foster parents, birth parents and DCYF frontline staff to develop concrete goals to expedite reunification for children who were recently removed from their parents' home. This program starts with a 24-hour phone call from the facilitator to the family, facilitates an icebreaker meeting 10 days after placement to develop the relationship between the caregivers and DCYF staff and then facilitates monthly meetings for the next 6 months to discuss progress made towards reunification, increase visitation between the child and their parents, and remove barriers to reunification. This program also works with the parents to ensure they have the necessary supports needed in their home to ensure they can safely co-parent their child to facilitate reunification. TANF funding is drawn down for those services provided to those families with income at or below 200% FPG. Start date October 1, 2024.

Section 402(a)(1)(A)(ii) of the Act: Require a parent or caretaker receiving assistance under the program to engage in work (as defined by the State) once the State determines the parent

or caretaker is ready to engage in work, or once the parent or caretaker has received assistance under the program for 24 months (whether or not consecutive), whichever is earlier, consistent with section 407(e)(2)

AND;

Section 402(a)(1)(A)(iii) of the Act: Ensure that parents and caretakers receiving assistance under the program engage in work activities in accordance with section 407.

Per New Hampshire [RSA 167:85](#), all applicants and participants under the program must attend and participate in required appointments, employment contract development, and employment-related activities for eligibility into, and while participating in the program, unless temporarily exempt from participation as authorized by [RSA 167:82, II](#). Individuals are enrolled in the program and scheduled for their first appointment with an employment counselor Specialist (ECS) by the Family Service Specialist (FSS) at intake and are required to engage in work and/or work activities immediately and ongoing.

The New Hampshire Employment Program (NHEP) design minimizes the stigma of public assistance and focuses on work as a positive way to eliminate poverty and strengthen families. The program focuses on upward economic mobility, increasing parent and child well-being. Employment is promoted by:

- Providing comprehensive vocational assessment, career planning, credentialing and barrier resolution referrals as well as appropriate supports for all mandatory and volunteer TANF cash recipients.
- Assisting participants to gain employment in high-wage, high-demand careers, given due consideration to individual circumstances, labor market conditions, the needs of the dependent children for continuing care and protection, and the ultimate goal of long-term economic independence.
- Coordinating activities and providing support to promote self-sufficiency and strengthen family life.
- Providing a comprehensive support service package that includes: medical assistance, SNAP, child care, transportation, child support, and other support services necessary to promote economic independence;
- Promoting a successful transition from public assistance through the provision of job readiness activities, training, credential attainment and education activities including seeking employment, family support skills, and services following up on problem resolution and job advancement.
- Developing partnerships with employers to create job opportunities and meet the needs of both employers and participants.
- Providing a program where it is more advantageous to work than not to work by rewarding self-sufficiency.

An individual's work requirement status is reviewed at the time of application, redetermination, or when an individual reports a change to determine if the individual is an exempt or mandatory participant in the NHEP.

Allowable exemptions are described in [Section 808.05-Exemptions from Participation in NHEP](#) of the Family Assistance Manual. Certain individuals may be temporarily or permanently exempt from NHEP work requirements. TANF recipients who claim a medical exemption based on a short-term health condition will need to have their exemption reviewed every 6 months, less if verification of health condition is less than 6 months. If the second exemption request is for an exemption for the same condition or if the authorized healthcare provider indicates that this condition will last at least 12 months, the individual must provide proof to the (FSS) within 30 days that the individual has applied for other benefits for which they

are potentially eligible for, such as Supplemental Security Income (SSI), Social Security Disability Income (SSDI), Veteran's Administration (VA) benefits, Aid to the Permanently and Totally Disabled (APTD), or Aid to the Needy Blind (ANB).

Those engaged with NHEP are referred to an ECS. ECS staff are employed by the New Hampshire Department of Health and Human Services. ECS staff work with participants to assess their skills and abilities and develop an individualized employment plan. It is through that employment plan that employment-related activities and support services are made available to participants, through either the New Hampshire Employment Program or other community services. All mandatory individuals are required to participate in a work activity to meet participation requirements. Acceptable work activities may include any combination of the following:

- Unsubsidized employment
- Work Experience
- On-the-job training
- Job Search and Job Readiness
- Community Service
- Vocational Educational Training
- Job Skills Training Directly Related to Employment
- Education directly related to employment, in the case of a recipient who has not received a high school diploma or a certificate of high school equivalency (this includes English as a second language services)
- Satisfactory attendance at secondary school or in a course of study leading to a certificate of general equivalency, in the case of a recipient who has not completed secondary school or received such a certificate (this includes English as a second language services)

For a description of each work activity, in-depth information regarding the New Hampshire Employment Program, and the support services offered, please refer to New Hampshire's most recent Work Verification Plan, submitted July 2022.

Employment Counselor Specialists provide online options for participants to engage in work activities virtually, such as online trainings, job search and work readiness to keep them engaged without needing to go to a training site.

When individuals are participating in approved employment-related activities, support services are available to help individuals pay for such expenses as transportation, car repairs, child care, and required equipment for the position, uniforms, tuition, books, fees, and supplies. Employment-related services provided as described in [Section 808.41-Support Services](#) of the Family Assistance Manual.

[Section 407\(e\)\(2\) of the SSA](#) indicates that a state may not reduce or terminate assistance under the state program funded under this part or any other state program funded with qualified state program funded with qualified state expenditures (as defined in section [409\(a\)\(7\)\(B\)\(i\)](#)) based on a refusal of an individual to engage in work required in accordance with this section if the individual is a single custodial parent caring for a child who has not attained 6 years of age, and the individual proves that the individual has a demonstrated inability (as determined by the state) to obtain needed child care. The following definitions are applied to determine whether the parent has a demonstrated inability to obtain needed child care:

- "Appropriate child care" means the child care provider is: open for the hours and days the parent would need child care in order to comply with work requirements; able and willing to provide child care services including any of those required to address special needs of the children; either licensed or license-exempt for the appropriate age group in accordance with [RSA 170E](#); and providing care that is representative of the quality of child care provided to other children in the community.
- "Reasonable distance" means the distance of the available child care provider from the individual's residence and then to their work activity is not substantially greater than the distance that others living in the same town or city would travel for child care services and then to their work activity.
- "Unsuitability of informal child care" means that the child care provider is license exempt and was not able to successfully pass the background check required in [RSA 170E:7](#) related to the State central registry and criminal records check, or the child care provider was not able to meet the conditions specified in the employment-related child care program rules He-C 6914 and He-C6920.
- "Affordable child care arrangements" refers to equal access to child care that can be maintained without undue financial hardship to the family.

Detailed information regarding NHEP compliance requirements, good cause for non-cooperation with NHEP and actions taken during a sanction period are located the Family Assistance Manual under:

[Section 808.31-Compliance Requirements](#)

[Section 808.33-Good Cause for Non-Cooperation with NHEP](#)

[Section 808.35-Sanctions for Voluntary Quit, Or Failure/Refusal to Cooperate with NHEP Work Program Participation Requirements](#)

[Section 808.36- Actions Taken During A Sanction Period](#)

Section 402(a)(1)(A)(iv) of the Act: Take such reasonable steps as the State deems necessary to restrict the use and disclosure of information about individuals and families receiving assistance under the program attributable to funds provided by the Federal Government.

Policy regarding confidentiality and disclosure of client information remains the same as the one in effect from September 30, 1996 [reference [RSA 167:30](#)] with the exception described in [Section 408\(a\)\(9\)\(B\) of the Social Security Act](#), as amended, relative to providing information to law enforcement officials. Information concerning applicants and recipients is confidential. Use or disclosure of information in DHHS's files is limited to persons directly involved in administration or enforcement of the DHHS's programs, or as otherwise permitted by policy, or federal or state laws. At the onset of employment and annually thereafter, DHHS employees are required to review and sign Conflict of Interest, Confidentiality, and Statewide Computer Use policies. Agencies and individuals who contract with DHHS to provide services to TANF clients must meet DHHS's confidentiality requirements and sign a statement to that effect.

[Section 101- Individual Rights & Responsibilities](#) of the Family Assistance Manual outlines individual rights and responsibilities. At every application, redetermination and when requested, individuals and their authorized representatives are advised of their rights and responsibilities. Those are as follows:

Individual Rights:

- Application — Individuals have the right to apply for assistance and to have a timely eligibility decision made on the application.

- Authorized Representative — Individuals may choose any adult to assist them in any aspect of the eligibility process.
- Case Decisions — Individuals have the right to be notified of the outcome of all eligibility decisions and of any changes which affect the amount of their benefits or their level of eligibility.
- Civil Rights — DHHS does not discriminate against individuals because of their age, sex (including pregnancy sexual orientation, gender identity and sex characteristics), race, creed, color, marital status, familial status, physical or mental disability, religion, national origin or political affiliation or beliefs.
- Complaints and Administrative Appeals — Individuals have the right to request a review of their circumstances and/or an administrative appeal when they are dissatisfied with any action or inaction by DHHS which affects their participation in any DHHS program. Individuals have a right to bring someone with them to the appeal, like a friend, relative, or lawyer, or they can come alone. DHHS will not pay for any legal services the individual wants, but there is free and reduced cost legal services available in NH.
- Confidentiality — Information concerning individuals is confidential. Use or disclosure of information in DHHS files is limited to persons directly involved in administration or enforcement of DHHS programs, or as otherwise permitted by policy, or federal or state laws.
- Notification of Requirements — Individuals have the right to be notified of the eligibility requirements they must comply with, and of the actions, DHHS must take if the individual does not comply.

Individual Responsibilities:

- Accurate Information — Individuals are responsible for supplying complete and truthful information to the best of their ability to meet eligibility requirements.
- Changes — Individuals are responsible for reporting all changes in circumstances, which affect eligibility or the amount of assistance.
- Compliance — Individuals are responsible for complying with the eligibility requirements for the program(s) of assistance they are applying for.
- Verification — Individuals are responsible for providing required verifications.

The State of New Hampshire has established certain protocols to provide a consistent response by the Department of Health and Human Services when employees become aware of a potential crime under [RSA 631: Assault and Related Offenses](#), which includes but not limited to assault, domestic violence, reckless conduct criminal threatening, neglect, and financial exploitation as well as offenses under [RSA 632-A Sexual Assault and Related Offenses](#). These offenses include but are not limited to aggravated felonious sexual assault which identifies the engagement of sexual penetration with another person under certain circumstances such as the victim is physically helpless to resist the perpetrator, or the victim is thirteen (13) years of age or older and under sixteen (16) years of age and are related by blood or affinity to the perpetrator.

Certain divisions within DHHS have the opportunity for interactions with children requiring DHHS to share necessary confidential client information with professional community members outside DHHS, in the interest of protecting children. The protocol described below assures that staff, upon knowing either of the following circumstances, shall immediately report such information to DCYF Central Intake:

1. A child under the age of sixteen (16) is pregnant or has given birth while under the age of sixteen (16); or
2. A child under the age of eighteen (18) who has given birth or is pregnant as the result of force.

Once Central Intake receives this information, DHHS provides notification to both local law enforcement and the appropriate county attorney's office. This process is in accordance with DHHS's goal to reduce further trauma for children and to assure prompt notification to appropriate law enforcement.

Section 402(a)(1)(A)(v) of the Act: Establish goals and take action to prevent and reduce the incidence of out-of-wedlock pregnancies, with special emphasis on teenage pregnancies, and establish numerical goals for reducing the illegitimacy ratio of the State (as defined in section 403(a)(2)(B)).

The New Hampshire Division of Public Health Services (DPHS) Family Planning Program (NH FPP) collaborates with BFA to assist in the prevention of unintended pregnancies by providing family planning and reproductive health services to individuals in need with a heightened focus on vulnerable and low-income populations including, but not limited to the uninsured; underinsured; adolescents; LGBTQ+; and individuals in need of confidential services. In FFY 2023 (10/1/22-9/30/23), four (4) subcontractors provided family planning services to NH residents who are low-income across the state.

In FFY 2023, the New Hampshire Family Planning Program (NH FPP), funded through a Title X grant from the Office of Public Affairs (OPA), State General Funds, and additional TANF funds, provided clinical and educational services to 1,916 individuals. Among these, 880 (45.9%) of individuals have incomes at or below 100% of the federal poverty level, and 1,516 (79.1%) have incomes below 250% of the federal poverty level. Out of the 1,916 individuals, 4.6% of individuals have an unknown/unreported income status.

TANF funds are distributed to these sub-contractors to complement sexual and reproductive health services, by funding outreach and education activities outside the service site, to promote awareness of family planning and reproductive health services through partnerships with schools, support agencies, and other community-based venues. Activities/events include:

- Conducting community presentations that provide education at local schools on reproductive health topics (e.g., abstinence, contraception, sexually transmitted infections, and healthy relationships).
- Participating in monthly collaboration meetings with agencies such as the Coalition for Young Children and Families and the Mental Health Center to discuss and strategize collective efforts to prevent and reduce teenage pregnancies.
- Consistent collaboration with DCYF workers throughout the year to discuss services available to teens and provide education materials for distribution.
- Routinely meet with local welfare departments to discuss mutual programs, referrals, and provide up to date materials in waiting areas at the welfare offices.
- Continually work with the Sexual and Domestic Violence Program to share program updates and provide up to date materials to be distributed to clients.

The Comprehensive Family Support Services (CFSS) home visiting is a free program available to expectant parents and/or families with children ages 0-18 years at locations statewide. Embedded in 11 Family Resource Centers (FRCs) across NH, CFSS home visitors work in conjunction with the FRC to enhance access to community-based resources and opportunities to build social connections. This can include playgroups, support groups, parent education, community events, access to concrete needs, and more. Enrolled families are connected with a home visitor that will support the family in identifying needs, setting goals and accessing resources within their community.

CFSS home visitors partner with families to develop comprehensive goals to address current needs and assist in future planning, with a focus on improving economic self-sufficiency, strengthening 2 parent households, reducing unplanned pregnancies (including teen pregnancy), and maintaining children in their own home by:

- Encouraging plan development of future pregnancies
- Continuing education
- Finding and maintaining employment
- Household management and co-parenting support
- Obtaining housing
- Maternal depression screening and connection to supports
- Accessing community services
- Accessing parenting supports and education

Support programs include parent education (such as co-parenting support, positive behavior intervention, and position parenting practices), parenting support groups, connection to benefits, as well as resource and referral navigation. These community-based programs are designed to enable families to access the services they need and want in their own communities. The program has several funding sources. TANF funding is drawn down only for those services provided to families who are TANF-eligible.

On average, 1,600 referrals are made to CFSS annually from a variety of referral sources such as healthcare providers, community-based agencies, community members, and by the family themselves. The largest source being DCYF, accounting for 41% of referrals annually. In recent years, implementing agencies have identified an increase in referrals for the teenage population. Focused supports are provided to assist with needs such as:

- Teenage individuals seeking health and safety resources such as:
 - Family planning
 - Mental health services
 - Drug and alcohol safety
- Teenage parents seeking parenting supports and resource navigation
- Parents of teens seeking home visiting

In SFY2024, CFSS services were provided to families with 322 young adults ages 13-19 years.

New Hampshire teen birth rate has shown a steady decrease over the past four years, from 6.6 births per 1,000 teen girls (15-19 years) in 2020 to 2.6 births per 1,000 teen girls in 2023. This coincides with the national downward trend in teen birth rate. In comparison, the national teen birth rate has declined from 15.4 births per 1,000 teen girls in 2020 to 13.2 births per 1,000 teen girls in 2023. New Hampshire reported 180 teen births in 2023, with Sullivan and Coos counties having the highest rates.

In SFY 2025, CFSS agencies began implementing Newborn Navigation, an expansion to the existing service delivery model focused on increasing engagement of newborn families in NH. Newborn Navigators

engage with families prenatally, prior to hospital discharge, or within one month of birth. Families that enroll in Newborn Navigation receive a one-time home visit and a resource bag including items such as diapers, clothing, hygiene products, and educational materials. During the home visit, the Newborn Navigator supports the family in identifying needs and accessing resources through assessments such as maternal depression screenings and developmental screenings.

Newborn Navigation intended outcomes include:

- Increasing connections to community resources.
- Increasing connections to primary care and access to family planning resources to prevent out of wedlock pregnancies.
- Improving the safety of the home environment to maintain children in their own home.
- Increasing positive parenting behaviors
 - to maintain children in their own home.
 - to support the formation and maintenance of 2 parent households

In SFY 2024, 1,078 families received CFSS services. Among these, 1,028 (95%) were below 250% of the federal poverty level. Additionally, 373 (35%) of families were two-parent households. Newborn Navigation is projected to engage an additional 1,000 families in SFY 2025.

Section 402(a)(1)(A)(vi) of the Act: Conduct a program, designed to reach State and local law enforcement officials, the education system, and relevant counseling services, that provides education and training on the problem of statutory rape so that teenage pregnancy prevention programs may be expanded in scope to include men.

The New Hampshire Family Planning Program (NH FPP), funded through a Title X grant from the Office of Public Affairs (OPA), State General Funds, and additional TANF funds, provides education and information to increase awareness related to sexual assault, violence, and coercion as well as healthy relationships and consent. The audiences include, law enforcement, fire departments, schools, medical providers, and community agencies as well individuals from the community regardless of gender or sex.

The State of New Hampshire laws do not use the term “statutory rape” but instead use “sexual assault”.

Section 402(a)(1)(A)(vii) of the Act: Implement policies and procedures as necessary to prevent access to assistance provided under the State program funded under this part through any electronic fund transaction in an automated teller machine or point-of-sale device located in a place described in section [408\(a\)\(12\)](#), including a plan to ensure that recipients of the assistance have adequate access to their cash assistance.

AND;

Section 402(a)(1)(A)(viii) of the Act: Ensure that recipients of assistance provided under the State program funded under this part have access to using or withdrawing assistance with minimal fees or charges, including an opportunity to access assistance with no fee or charges, and are provided information on applicable fees and surcharges that apply to electronic fund transactions involving the assistance, and that such information is made publicly available.

New Hampshire (NH) has implemented policies and practices to comply with the mandates of Section 4004 of the Middle Class Tax Relief and Job Creation Act of 2012 (P.L. 112-96), and prevent assistance funded

with TANF and TANF maintenance-of-effort funds from being used in any electronic benefit transfer transaction in any liquor store; any casino, gambling or gaming establishment; or any retail establishment which provides adult-oriented entertainment in which performers disrobe or perform in an unclothed state for entertainment.

NH passed legislation in June of 2013, effective January 1, 2014, that provided an addition to [RSA 167:7](#) at RSA 167:7-b. [RSA 167:7-b](#) prohibits any person receiving public cash assistance from using electronic benefit transfer (EBT) cards or cash obtained with EBT cards for the purpose of purchasing or participating in any activities in any location as listed in the law and above, which includes the three locations identified in P.L.112-96. The law imposes client penalties on cash and EBT use for TANF, Old Age Assistance (OAA), Aid to the Needy Blind (ANB), and Aid to the Permanently and Totally Disabled (APTD) programs as all four programs are administered through the same EBT contractor and cards. The law directs the listed businesses to not (knowingly) accept direct cash assistance funds held on an EBT card or cash obtained with EBT cards using an Automated Teller Machine (ATM) or Point of Sale (POS) device on business premises and provides the authority for DHHS to refer the business sites to their respective regulatory authorities.

NH amended administrative rules to direct the implementation of RSA 167:7-b at He-W 608.01 by removing (a) that required *no* restrictions and adding He-W 608.02, which provides details of how and when the penalty is applied. It also added definitions regarding which businesses are restricted by the legislation. The rules at 608.02 (d-f) specify the conditions and penalty if the cardholder is not a beneficiary, as in child-only or protective payee cases. Additional language further specifies how DHHS identifies prohibited adult entertainment, liquor stores, and gambling outlets.

DHHS informs clients and businesses about EBT card/cash restrictions and penalties. The communication includes one-time and ongoing strategies to alert clients and applicants, licensing authorities and businesses about restrictions, and strategies to alert and remind new and current applicants and eligible recipients about the proper uses of the EBT card and their cash assistance.

Those eligible and those applying for TANF cash are informed and/or reminded of the restrictions and penalties of using their EBT card during their interview and during their redetermination. This information is located on [BFA Form 811R](#), Your Rights and Responsibilities, and on [BFA Form 811S](#), Statements of Understanding.

[Supervisory Release \(SR\) 14-05](#) issued on December 11, 2013 (effective January 1, 2014) outlines the policy prohibiting the use of the EBT card, or cash obtained with the EBT card, at the specified sites.

NH ensures that TANF cash assistance recipients can use and access their benefit with minimal or no fees or charges. Recipients have the choice of Electronic Benefit Transfer (EBT), Electronic Fund Transfer (EFT), or vouchers to vendors such as landlords and utilities. NH does not issue checks for TANF cash assistance. If a client requests EFT, but the state cannot transfer the funds, the state will issue an EBT card. The rules governing the issuance of assistance payments are found at He-W 671.01, 671.02, and 671.03. When a client chooses EFT, they retain the ability to control the location, and fees associated with their card use and cash access.

The EBT cards are useable at all POS devices (as cashback) and at all ATM's that display the Quest logo. NH monitors the availability of the POS and ATM machines that deliver the EBT cash benefit by zip code, ensuring every client in NH has adequate access to a POS or ATM based on the number of cash withdrawals made at each outlet. The EBT Administrator for NH monitors the location and number of ATM's that accept EBT through quarterly Cash Access Reports that list ATMs by zip code, address, and whether there is a

surcharge. The contractor uses this report to make a “NH Summary Report” that reviews the cash issued per zip code and identifies the volume as high or low. The contractor is required to identify one ATM or POS per \$5,000 cash issuance. If the ratio is out of compliance, the contractor must recruit a new ATM or POS. NH currently has one rural zip code that does not meet these requirements. There is no location that would be suitable for an ATM or POS in this zip code. For these types of very rural districts, we encourage clients to choose the EFT option, so they have the ability to write checks for their life essentials such as rent and utilities. The EBT Administrator also monitors EBT client access through a Point-of-Sale Report that lists all sites that offer cashback with purchase.

The EBT contract provides two free cash withdrawals per month at ATMs, and unlimited cashback with purchase at those POS locations that allow cashback with purchase. After the two free withdrawals, a cardholder is either charged the ATM surcharge or a 45-cent fee by the vendor.

[Per TANF-ACF-PI-2023-02](#) effective September 1, 2023, NH uses a non-recurrent, short-term benefit to help families whose TANF benefits have been stolen by fraudulent means. Financial benefits will be replaced if they are stolen on an individual’s EBT card through card skimming, card cloning, or similar fraudulent methods that could include, but are not limited to, phishing or scamming. Only electronic stolen benefits on an individual’s EBT card are eligible for replacement. Benefits are not replaced if stolen from an EFT issuance or if a household lost their card or gave someone they know their card and PIN, even if it was used without their permission. All compromised EBT cards must be cancelled and replaced immediately. More information regarding replacement of financial benefits lost due to electronic stolen benefits is located under [Section 709.01-What Benefits May Be Replaced](#) of the Family Assistance Manual.

NH provides opportunities for cash assistance recipients to track the balance of their account. NH requires the EBT contract administrator to provide a cardholder portal that allows the EBT cardholder to monitor the balance of their bi-monthly benefit. The balance on receipts at POS devices also provides updated information about their cash assistance balance, and clients are advised to keep these receipts and note their balance.

NH provides information on EBT use, including information on how to access the cash assistance benefit without a fee, in:

- [BFA Form 77u](#), Community Resources; and
- An informational client flyer that the EBT card is attached to.

SPECIAL PROVISIONS

Section 402(a)(1)(B)(i) of the Act: The document shall indicate whether the State intends to treat families moving into the State from another State differently than other families under the program, and if so, how the State intends to treat such families under the program.

New Hampshire does not implement this option. Families moving into New Hampshire from another state are treated the same as families living in the state.

Section 402(a)(1)(B)(ii) of the Act: The document shall indicate whether the State intends to provide assistance under the program to individuals who are not citizens of the United States, and if so, shall include an overview of such assistance.

New Hampshire provides assistance to qualified aliens, either with or without time-limit restrictions. A qualified alien is an individual who at the time of application is one of the following:

- Lawfully admitted permanent resident under the Immigration and Nationality Act (INA).
- Asylee granted such status under section 208 of the INA.
- Refugee admitted to the U.S. under section 207 of the INA.
- Noncitizen whose deportation is being withheld under section 243(h) of the INA (Note: after April 1, 1997, withholding of deportation is under section 241(b)(3)); parolee paroled into the U.S. under section 212(d)(5) of the INA for a period of at least 1 year.
- Conditional entrant into the U.S. under section 203(a)(7) of the INA as in effect prior to April 1, 1980.
- Cuban or Haitian entrant under section 501(e) of the Refugee Education Assistance Act.
- Amerasian immigrant under section 584 of the Foreign Operations, Export Financing, and Related Programs Appropriations Act of 1988 (usually the children of Vietnamese women and Americans present in Vietnam during the Vietnam War era).
- Noncitizen who is or has been a victim of family/domestic violence while residing in the U.S. by that person's spouse, or by another member of the spouse's family residing in the same household as the parent and the spouse acquiesced or consented to such battery or cruelty; or the noncitizen child of a parent subjected to family/domestic violence.
- Veteran or active in military service, including noncitizens on active military duty in the Armed Forces of the U.S., honorably discharged veterans who have met the minimum active duty commitment (24 months or the time period for which they were called to active duty), and their spouses or unmarried surviving spouses (if the individual is deceased), unmarried dependent children under 18 years of age, and, for medical assistance only, Philippine nationals who served in the Philippine Commonwealth Army during WWII or as Philippine Scouts following WWII.

All other aliens are ineligible for assistance, with the following exceptions:

- Victims of Trafficking: Non-citizens who have been certified as a victim of trafficking by the Office of Refugee Resettlement (ORR), and who do not meet the definition of qualified alien, may still be eligible for benefits and services under any State or Federal Program as if the individuals were admitted to the U.S. as refugees. See [Section 305.13-Qualified Aliens Eligible Without Restriction](#), Qualified Aliens Eligible Without Restriction, for a description of the eligibility status of refugees. Certified victims of trafficking must meet all other eligibility criteria for a program of assistance to receive benefits.

- Native Americans: Native Americans who are members of an Indian tribe as defined in section 4(e) of the Indian Self-determination and Education Assistance Act [25 USC 450(e)] or were born in Canada and are covered under the provisions of section 289 of the Immigration and Nationality Act (8 USC 1359) are eligible for medical assistance, regardless of qualified alien status. Canadian-born Indians must have at least 50% American Indian blood.

The following qualified aliens are eligible without restrictions:

- Noncitizens in military service.
- Refugees, from date of entry into the U.S. with such status.
- Asylees, from date of INS action to grant asylum.
- Cuban/Haitian Immigrants from date of entry into the U.S. with such status.
- Amerasian Immigrants.
- Noncitizens whose deportation is being withheld, from the date of INS action to withhold deportation.
- Iraq and Afghanistan special immigrants according to section 1059 of the National Defense Authorization Act.
- Ukrainian Humanitarian Parolees, under section 401 of the Additional Ukraine Supplemental Appropriations Act, 2022 (Public Law 117-128).

All other qualified aliens are eligible only if they resided in the United States prior to August 22, 1996, or have resided in the United States lawfully for five years from their date of entry when such entry took place after August 22, 1996.

Section 402(a)(1)(B)(iii) of the Act: The document shall set forth objective criteria for the delivery of benefits and the determination of eligibility and for fair and equitable treatment, including an explanation of how the State will provide opportunities for recipients who have been adversely affected to be heard in a State administrative or appeal process.

Except for the TANF provisions, which supersede State provisions, DHHS will continue to use the objective criteria described in the Family Assistance Manual to determine eligibility. The eligibility criteria is equitable throughout the State. Individuals have a right to an administrative hearing, as outlined in [Section 143](#) of the Family Assistance Manual. The following steps are to be taken:

1. Explain the basis for the decision and the applicable policy requirements.
2. Provide the individual an opportunity to have a conference with the supervisor.
3. Provide the individual an opportunity to request an administrative appeal.
4. Notify the individual that if requested within 15 days from the date on the notice of the action being appealed, a recipient's benefits may, under certain circumstances, be continued or reinstated at the previous level until the decision on the appeal is reached, and that the individual has a right to bring someone with them to the appeal, like a friend, relative, or lawyer, or they can come alone. DHHS will not pay for any legal services the individual wants, but there is free and reduced cost legal services available in NH.

[Section 101](#) of the Family Assistance Manual outlines individual rights and responsibilities. At every application, redetermination and when requested, individuals and their authorized representatives are advised of their rights and responsibilities. Those are as follows:

Individual Rights:

- Application — Individuals have the right to apply for assistance and to have a timely eligibility decision made on the application.
- Authorized Representative — Individuals may choose any adult to assist them in any aspect of the eligibility process.
- Case Decisions — Individuals have the right to be notified of the outcome of all eligibility decisions and of any changes which affect the amount of their benefits or their level of eligibility.
- Civil Rights — DHHS does not discriminate against individuals because of their age, sex (including pregnancy sexual orientation, gender identity and sex characteristics), race, creed, color, marital status, familial status, physical or mental disability, religion, national origin or political affiliation or beliefs.
- Complaints and Administrative Appeals — Individuals have the right to request a review of their circumstances and/or an administrative appeal when they are dissatisfied with any action or inaction by DHHS which affects their participation in any DHHS program. Individuals have a right to bring someone with them to the appeal, like a friend, relative, or lawyer, or they can come alone. DHHS will not pay for any legal services the individual wants, but there is free and reduced cost legal services available in NH.
- Confidentiality — Information concerning individuals is confidential. Use or disclosure of information in DHHS files is limited to persons directly involved in administration or enforcement of DHHS programs, or as otherwise permitted by policy, or federal or state laws.
- Notification of Requirements — Individuals have the right to be notified of the eligibility requirements they must comply with, and of the actions, DHHS must take if the individual does not comply.

Individual Responsibilities:

- Accurate Information — Individuals are responsible for supplying complete and truthful information to the best of their ability to meet eligibility requirements.
- Changes — Individuals are responsible for reporting all changes in circumstances, which affect eligibility or the amount of assistance.
- Compliance — Individuals are responsible for complying with the eligibility requirements for the program(s) of assistance they are applying for.
- Verification — Individuals are responsible for providing required verifications.

The Department does not discriminate against people because of their age, sex (including pregnancy, sexual orientation, gender identity, and sex characteristics), race, creed, color, marital status, familial status, physical or mental disability, religion, national origin or political affiliation or belief. There will be no discrimination in accepting or providing services, or the admission or access to, or treatment or employment in, any of the Department's programs or activities.

The Ombudsman is responsible for coordinating the civil rights compliance efforts of the Department, component offices and divisions to follow state and federal rules against discrimination.

If all eligibility requirements are met, financial assistance begins on the earlier of the following:

- the first day of the month following the month of application, or
- the first day of the semimonthly payroll period in which eligibility is determined, as long as no assistance is granted for any days prior to the application date and the assistance group is eligible in all respects on the day the first payment is issued.

Financial assistance benefits are issued via Electronic Funds Transfer (EFT) or Electronic Benefits Transfer (EBT). The FANF casehead must choose which benefit issuance method they prefer. Paper checks are never used to issue financial assistance benefits, except for recipients in nursing facilities who may choose to receive supplemental payments for a personal needs allowance in the form of a check.

With regards to application processing time frames, an application must be acted upon promptly and without undue delay. For all categories of financial assistance, a Notice of Decision (NOD) is generated and sent to the individual as soon as eligibility has been determined, but no later than 45 calendar days from the application date.

Individuals are notified in advance of termination of their assistance, when there is a decrease in the level of eligibility, or there is a decrease in their benefit amount. The time frame between the date the NOD is generated and the date the action takes effect is called the advance notice period (ANP).

Financial assistance is determined for a specific period called the eligibility period. At the end of the eligibility period, benefits will continue to be issued automatically until action is taken to terminate assistance. A Redetermination for eligibility will occur for all households on regularly scheduled intervals. The longest eligibility period for FANF financial assistance is 12 months. During a Redetermination the worker will review the household's circumstances to determine eligibility, the worker will request documentation from the household to verify and prove all eligibility factors and criteria are met. The worker will update eligibility and benefits as necessary.

For more information, also see FAM:

[Section 161.01 Timely Notice](#)

[Section 161.03 Required Verification for Redetermination](#)

[Section 161.05 Processing Redeterminations](#)

[Section 161.07 Termination at Redetermination](#)

Workers can request documentation, clarification, or a review of a FANF household to determine eligibility during the eligibility period (prior to the households scheduled redetermination) when either of the following situations occur:

- there is a change in case circumstances that affects other eligibility factors; **or**
- there is conflicting information regarding eligibility.

Individuals are notified of case decisions on a Notice of Decision (NOD). Each NOD must include all the following:

- the name, address, and telephone number of the District Office;
- the individual's name and address;
- the case number and current date;
- the name of the worker to contact for more information, when possible;
- the effective date of the action;

- an action message which describes the effect of the decision or the change or action that is occurring which requires notification to the individual; **and**
- the calculation which determined the benefit level and amount when the action being taken is the result of a financial eligibility determination.

Each NOD also includes:

- a reason message which describes why a negative action is occurring and the policy manual reference(s) on which the action is based; **or**
- the names of eligible individuals in the household when a case is determined to be eligible.

Section 402(a)(1)(B)(iv) of the Act: Not later than 1 year after the date of enactment of this Act, unless the chief executive officer of the State opts out of this provision by notifying the Secretary, a State shall, consistent with the exception provided in section 407(e)(2), require a parent or caretaker receiving assistance under the program who, after receiving such assistance for 2 months is not exempt from work requirements and is not engaged in work, as determined under section 407(c), to participate in community service employment, with minimum hours per week and tasks to be determined by the State.

The State opted out of the community service provision by submitting a letter dated August 7, 1997, from then Governor Jeanne Shaheen to then United States HHS Secretary Donna E. Shalala.

Section. 6701-6703 of (P.L. 111-148) Title VI, Subtitle H of the Patient Protection and Affordable Care Act of 2010: Elder Justice Act of 2009. Section 6703(a)(2) of PPACA amends section 402(a)(1)(B) of the Social Security Act (42U.S.C 602(a)(1)(B))—

(v) The document shall indicate whether the State intends to assist individuals to train for, seek, and maintain employment—

(I) providing direct care in a long-term care facility (as such terms are defined under section 1397j of this title); or

(II) in other occupations related to elder care determined appropriate by the State for which the State identifies an unmet need for service personnel, and if so, shall include an overview of such assistance.

The state of New Hampshire also offers the Nursing Assistant Reimbursement Program. This program is a longstanding federal workforce initiative intended to encourage nursing assistants to become employed within nursing homes. The Department of Health and Human Services, Bureau of Elderly and Adult Services (BEAS) manages this program, which reimburses individuals in full who complete a nursing assistant training program, approved by the NH Board of Nursing, and gain employment in a nursing home within one year of passing the competency exam. This program is financially supported through Medicaid funds.

POLICY CHANGES and CLARIFICATIONS

Policy Changes and Clarifications

Since the TANF State Plan, effective October 1, 2020, the following policy changes and clarifications were made:

<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
When a death match has verified that all members of the household are deceased, the case must be closed and all remaining cash balances in the household's EBT account will be removed in 90 days.	When a death match has verified that all members of the household are deceased, the case must be closed and all remaining cash balances in the household's EBT account will be expunged manually by the EBT Administrator upon notice of the case closing for this reason.	BFA SR 21-12 Eff: 09/23/21
<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
Individuals who are eligible to receive Refugee Cash Assistance (RCA) and Refugee Medical Assistance (RMA) received up to 8 months of RCA and RMA benefits following the individual's date of entry into the U.S., or date that USCIS grants asylum for Asylees.	Individuals who are eligible to receive Refugee Cash Assistance (RCA) and Refugee Medical Assistance (RMA) will receive up to 12 months of RCA and RMA benefits following the individual's date of entry into the U.S., or date that USCIS grants asylum for Asylees.	BFA SR 22-15 Eff: 10/1/22
<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
An assistance group's countable personal and real property resources cannot exceed \$1000 for TANF applicants and \$2000 for TANF recipients.	An assistance group's countable personal and real property resources cannot exceed \$1000 for TANF applicants and \$5000 for TANF recipients.	BFA SR 22-17 Eff: 07/01/22
<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
The child/dependent care deduction age bracket was broken into 2 groups: - Children age 0 to under 2; and - Children age 2 and older.	The child/dependent care deduction age bracket broken into 2 groups has been updated to: - Children age 0 to under 6; and - Children age 6 and older.	BFA SR 22-18 Eff: 07/01/22

<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
No former policy for pre-paid cards.	Pre-paid debit cards (such as Direct Express) are treated in the same manner as a checking account for all programs.	BFA SR 22-27 Eff: 08/23/22
<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
Allow allocation of income as a deduction when the applicant or recipient of TANF assistance pays for the unmet needs of a dependent outside of the TANF AG.	Allocation of income is no longer an allowable deduction.	BFA SR 22-28 Eff: 08/23/22
<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
EITC payments were treated as lump sum income. Tax refunds were a counted resource.	Lump sum EITC payments and tax refunds are an excluded resource for 12 months from receipt. <i>*Note – this was a change made in 2010, but an SR was sent out 12/2022 to update manual pages to reflect what was already being implemented.</i>	BFA SR 22-36 Eff: 12/02/22
<u>Existing Policy</u>	<u>Clarified Policy</u>	<u>SR & Effective Date</u>
Money in an ABLE account was not specifically addressed.	Funds in ABLE/STABLE-NH accounts are excluded resources when determining eligibility. Individuals can contribute their own resources to their own ABLE/STABLE-NH account thus reducing their countable resources. Individuals can contribute their own income to their own ABLE/STABLE-NH account; however, this does not make the income excluded and there is no allowable reduction in countable income for determining eligibility. Third-party contributions to an ABLE/STABLE-NH account or disbursements from an individual's Special Needs Trust or Pooled Trust to their ABLE/STABLE-NH account are not counted as a resource or as income to the applicant or recipient. There is no special treatment for contributions made to another person's STABLE/ABLE-NH Distributions from ABLE/STABLE-NH accounts are not counted as a resource or as income, as long as they are used for QDEs for the individual.	BFA SR 23-16 Eff: 03/17/23 Follow-up from Director's Memo 2/25/20

<u>Existing Policy</u>	<u>Clarified Policy</u>	<u>SR & Effective Date</u>
Applications cannot be reused once denied and cases cannot be re-opened after the advance notice period.	An application for assistance that has been denied or closed can be reused if the denial or closing was due to an agency error. The application date is the date the application was first filed. If any changes have occurred since the application, the FSS must document those changes, and the individual must provide any required verification. An application for assistance that has been closed or denied for failure to provide verifications can be reused for the Simplified Reapplication process, as long as the applicant provides all required verification within 30 days of the denial notice or the former recipient provides all required verification within 10 days of the end of the advance notice period.	BFA SR 23-17 Eff: 03/17/23
<u>Existing Policy</u>	<u>Clarified Policy</u>	<u>SR & Effective Date</u>
BFA forms are translated into Nepali language	The office of Minority Health and Refugee Affairs (OMHRA) has indicated that there is no longer a need for BFA forms to be translated into Nepali and obsolescence of all Nepali forms is effective immediately upon the Supervisory Release.	BFA SR 23-23 Eff: 06/09/23
<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
Probation/Parole Violators: Individuals that are violating probation or parole are ineligible for TANF.	Probation/Parole Violators: Policy has not changed; these individuals are ineligible for TANF. Policy has been updated regarding the treatment of income and resources of these individuals, along with changes in HEIGHTS. The income and resources of an individual disqualified from TANF due to being a probation or parole violator are considered to be 100% available to remaining household members.	BFA SR 23-28 Eff: 08/17/23
<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
Financial benefits can only be replaced for an EBT transaction error. Financial benefits will not be replaced if the EBT card is used by an unauthorized individual at any time after it has been activated.	Financial benefits will be replaced if they are stolen through card skimming, card cloning, or similar fraudulent methods.	BFA SR 23-36 Eff: 09/01/23

<u>Former Policy</u>	<u>New Policy</u>	<u>SR & Effective Date</u>
Specified Relative – blood relatives and half-blood relatives, including preceding generations to the fourth degree of kinship, specifically: • Father, mother, brother, sister, stepfather, stepmother, stepbrother, stepsister, grandmother (including great and great-great), grandfather (including great and great-great), uncle (including great and great-great), aunt (including great and great-great); and • Nephew, niece, and first cousin, only. In accordance with federal regulations and state law degrees of kinship do not apply to nephews, nieces, and cousins when determining if the individual meets the definition of specified relative. Therefore, a specified relative would not include, for example, such relations as first cousins once removed, second cousins, grandnephews or grandnieces. • Also included are adoptive parents and their relatives to the same degree as blood relatives, and spouses of any persons named above, even after the marriage has been terminated by death or divorce.	Specified Relative – blood relatives and half-blood relatives, including preceding generations to the fourth degree of kinship, specifically: • Father, mother, brother, sister, stepfather, stepmother, stepbrother, stepsister, grandmother (including great and great-great), grandfather (including great and great-great), uncle (including great and great-great), aunt (including great and great-great); and • Nephew, niece, and first cousin, only. In accordance with federal regulations and state law degrees of kinship do not apply to nephews, nieces, and cousins when determining if the individual meets the definition of specified relative. Therefore, a specified relative would not include, for example, such relations as first cousins once removed, second cousins, grandnephews or grandnieces. • Also included are adoptive parents and their relatives to the same degree as blood relatives, and spouses of any persons named above, even after the marriage has been terminated by death or divorce. • Court appointed guardian who provides care and parental control to a dependent child.	BFA SR 23-36 Eff: 09/01/23

Cliff Effect Initiative

The HB4 working group began meeting in November 2019 to develop recommendations to address the cliff effect. The first step towards the development of recommendations was to conduct a comprehensive economic analysis. The analysis was led by New Hampshire Employment Security (NHES) in partnership with the Department. This analysis began in December 2019 and was underway when the COVID-19 pandemic came upon New Hampshire. Instead of pausing the work or cutting it short, the work was expanded to include areas significantly impacted by the pandemic, such as unemployment and the availability of child care across the state. While this extended the timeline for the work, it provided valuable, additional data for the development of this plan to strengthen New Hampshire's families, economy, and communities.

Econsult presented the [analysis](#) on March 22, 2021. From this, five workgroups were established: Food and Income Security, Transportation, Workforce, Housing, and Child Care. A member of the Whole Families Chapter and a Department program person co-led these groups; their charge was to review and analyze the recommendations and present their findings. The groups presented to the HB 4 Working Group on June 21 and 29, 2021.

What follows are the TANF recommendations that the HB4 working group and DHHS senior management decided to move forward with:

- Changes to Earned Income Disregard. Participants are eligible for a 75% TANF earned income disregard when starting a new full-time position or current employment increase to full time. For those working in jobs on the high demand list (generated by the New Hampshire Workforce Innovation Opportunities Act board) and medical benefits are offered, are eligible for a 100% disregard during the two-year pilot. The pilot was implemented in September 2022. This encourages participants to work, take promotions, increase work hours, and take higher paying jobs while keeping more income for their household. This will help mitigate the challenge of an individual facing a choice of work advancement that will result in a net loss for the household or forgoing the advancement opportunity to keep their benefits.
- Adjustment to the TANF child care deduction age bands from age 0-2 for under school age to 0-6 & school age from age 2+ to age 6+. This will assist with the benefits cliff as it will enable families with children under age 6, who tend to incur higher child care costs, to receive a higher deduction in their TANF budget which results in a higher TANF grant. Adoption of the rule amendments occurred in June of 2023.
- Increase resource limit for TANF recipients from \$2,000 to \$5,000. This will allow families the ability to save additional funds that can be utilized for higher priced items such as a down payment on a new apartment or a car. Adoption of the rule amendments occurred in May of 2023.
- Post TANF Employment Program. This voluntary program will provide services to individuals that were participating in the NHEP, for one year after NHEP closure due to TANF cash closure, to create a safety net to reduce recidivism. The Post TANF Employment Program will utilize TANF funding. The purpose of the program is to provide guidance and employment counseling to assist with employment retention, as well as provide support and assistance in the event of job loss and to aid in securing new employment. The Post TANF Employment Program focus is also to assist with upward mobility within the existing company and/or through shifting employment to another company. In addition, ETS services will be available to provide assistance that might

- otherwise result in job loss to assist participants with maintaining their employment. For example, car repairs. The overarching goal of this program is to prevent and reduce recidivism. Implementation date scheduled January 1, 2024.
- TANF Automobile Savings Program – Match for Down Payment. For employed participants in need of transportation to maintain employment, NH DHHS NHEP program will match up to \$1,000 as a one-time down payment on a certified used vehicle. The participant will need to have a credit score that allows for access to bank funding. NH raised the resource limit for TANF/NHEP recipients to assist them with gaining necessary matching funds and bank funds to enable them to pay for maintenance.

ATTACHMENT A
EXECUTIVE CERTIFICATIONS
2023

In administering and operating a program, which provides Temporary Assistance for Needy Families under Title IV-A of the Social Security Act, the State of New Hampshire certifies the following:

CHILD SUPPORT ENFORCEMENT PROGRAM

The State operates a child support enforcement program described in the State Plan under Title IV-D of the Social Security Act.

FOSTER CARE AND ADOPTION ASSISTANCE PROGRAM

The State operates a foster care and adoption assistance program described in the State Plan under Title IV-E of the Social Security Act. Children receiving foster care and adoption assistance under Title IV-E receive Medicaid under Title XIX as described in the State Plan for Title XIX.

ADMINISTRATION OF THE PROGRAM

The TANF assistance program described in this State plan is administered and supervised by the New Hampshire Department of Health and Human Services, Bureau of Family Assistance.

Local governments and private sector organizations were involved in developing the State's TANF program, and had an opportunity to comment as follows:

- Five informational sessions in different locations were held around the state during October 1995. Each session had two parts--an afternoon session for interested organizations and agencies, and an evening session for the public.
- A 30-day comment period for the New Hampshire waiver was provided in October 1995; furthermore, a 45-day comment period is required at every renewal.
- Comments and public hearings on HB 32, enabling state legislation for welfare reform, were held in October 1995.
- Ongoing meetings were held between DHHS staff and the New Hampshire Municipal Association to provide information and solicit comments relative to the effect of the New Hampshire Employment Program and PRWORA legislation on New Hampshire towns and cities.
- Ongoing meetings were held with representatives from New Hampshire Legal Assistance and the New Hampshire Women's Lobby.
- Presentations were made throughout 1996 to such organizations as New Hampshire Housing Authority, Head Start, and Single Parent Program Directors.

Since New Hampshire's original TANF State Plan was developed, only changes that were mandated by federal or state law, or those which have been implemented through the rulemaking process mandated by the Administrative Procedure Act are included in this plan. The rulemaking process provides two

opportunities for the public to comment on each proposed rule, first at a public hearing run by DHHS, and second at a public meeting held by the Joint Legislative Committee on Administrative Rules.

The Family Assistance Advisory Council was established in 1996 to review and provide input to the original rules for TANF. This group continues to meet on a regular basis, providing review and input into proposed policy changes and Division initiatives.

In December 2023, a press release was published notifying the public of a TANF State Plan renewal and directing the public to the NH DHHS website location for a review of the plan. An email address was included in the release for public comment. The plan was also reviewed by the Family Assistance Advisory Council mentioned above.

EQUITABLE ACCESS TO ASSISTANCE FOR INDIAN TRIBES

The State provides each member of an Indian tribe who is domiciled in the State and not eligible for assistance under a tribal family assistance plan approved under [section 412](#), with equitable access to the TANF assistance program described in the Plan, funded under this part attributable to funds provided by the federal government.

PROGRAM FRAUD AND ABUSE

The state continues to establish and enforce standards and procedures to prevent fraud and abuse under the fraud and abuse program in effect since September 30, 1996. State law in sets forth the standards and procedures concerning nepotism, conflicts of interest among individuals responsible for the administration and supervision of the State program, kickbacks, and the use of political patronage. This law is implemented and enforced by the rules of the state personnel system.

AVAILABILITY OF STATE PLAN

A copy of the public notice is included as Attachment B. The updated plan will be uploaded and remain available on the Internet at the Department of Health and Human Services website.

STANDARDS AND PROCEDURES TO ENSURE THAT THE STATE WILL SCREEN FOR AND IDENTIFY SEXUAL HARASSMENT, DOMESTIC VIOLENCE, SEXUAL ASSAULT, AND STALKING

The New Hampshire Department of Health and Human Services implemented the Family Violence Option (FVO) in February 2000. The FVO provides an individualized assessment, referrals, and service planning for victims of sexual harassment or survivors of domestic violence, sexual assault, or stalking who are requesting an extension to the 60-month lifetime limit, and/or for excused participation from mandatory work program participation requirements. Clients must participate in an FVO assessment as specified in [45 CFR 260.50-58](#). Staff from the Bureau of Employment Supports (BES) trained in domestic violence issues

conduct assessments and provide waivers for excused participation from mandatory work participation requirements, which can be granted for up to six months.

BES continues to work closely with the New Hampshire Coalition Against Domestic & Sexual Violence agency to develop the FVO policy and procedures. The agencies also share training resources to educate each other's staff members. Training includes the nature and dynamics of sexual harassment and domestic violence, sexual assault, and stalking; State standards and procedures relating to the prevention of, and assistance for, individuals who are victims of sexual harassment or survivors of domestic violence, sexual assault, or stalking; and methods of ascertaining and ensuring the confidentiality of personal information and documentation related to applicants for assistance and their children who have provided notice about their experiences of sexual harassment, domestic violence, sexual assault, or stalking. BES provides information about the options available to current and potential beneficiaries.

Current policy allows TANF clients to claim good cause for non-cooperation with Child Support due to emotional/physical harm to the child or parent. With the adoption of the FVO in 2000, the definition was expanded to also include domestic violence.

Another change in policy resulting from the state's adoption of the FVO relates to "acceptable" documentation for a claim of domestic violence. If an individual lacks the required documentation for an FVO or non-cooperation with child support request, (restraining order, medical records, legal documents, statements from agency professionals, etc.), a signed sworn statement from the individual claiming the existence of the domestic violence may be accepted as documentation for all claims of domestic violence.

For the federal fiscal year 2023, BES has granted 141 FVO for excused participation from mandatory work participation requirements. Of those 141 waivers, 12 were for a Hardship Extension, without a request for waived participation.

SEXUAL HARASSMENT DEFINED

The term "sexual harassment" means hostile, intimidating, or oppressive behavior based on sex that creates an offensive work environment.

DOMESTIC VIOLENCE DEFINED

The term "family/domestic violence" has the same meaning as "battered or subjected to extreme cruelty," and is defined as having been subjected to any of the following:

- physical acts that resulted in or threatened to result in physical injury to the individual;
- sexual abuse;
- sexual activity involving a dependent child;
- being forced as the caretaker relative of a dependent child to engage in nonconsensual sexual acts or activities;
- threats of, or attempts at, physical or sexual abuse;
- mental abuse; or
- neglect or deprivation of medical care.

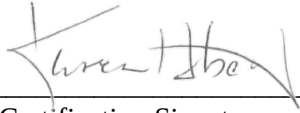
SEXUAL ASSAULT DEFINED

The term “sexual assault” means any nonconsensual sexual act proscribed by Federal, tribal, or State law, including when the victim lacks capacity to consent.

STALKING DEFINED

The term “stalking” means engaging in a course of conduct directed at a specific person that would cause a reasonable person to:

- fear for their safety or the safety of others; or
- suffer substantial emotional distress.



Executive Certification Signature

12-26-24

Date

ATTACHMENT B

PUBLIC NOTICE

Pursuant to Section 5501 of the Balanced Budget Act of 1997 and sections 402(a) and 403(a)(1)(A) of the Social Security Act, the New Hampshire Department of Health and Human Services has submitted to the Federal Government its State Plan for the Temporary Assistance for Needy Families (TANF) Program. This submission will serve the purpose of renewing New Hampshire's status as an eligible state qualifying for TANF funding.

New Hampshire's original TANF State Plan was effective October 1, 1996. This new plan incorporates all changes since the October 2020 State Plan. All changes incorporated into the current State Plan were either mandated by federal or state law or adopted as rules pursuant to RSA 541-A. This renewal plan that will span October 1, 2023, thru December 31, 2026, was posted for 45 days for comment.

New Hampshire engages in an ongoing review process with stakeholders and the city and town welfare offices when proposing changes to the administration of the TANF program, generally through the Family Assistance Advisory Council (FAAC). This Council includes representation from low-income housing providers and advocates, food pantries and soup kitchens, child and family service providers, child care and Head Start, and legal assistance. This renewal plan for October 1, 2023, thru December 31, 2026, was submitted to the FAAC in December 2023. In addition, proposed rules follow a public comment requirement process and provide a second comment period before adoption before the Joint Legislative Committee on Administrative Rules. All rule changes during the previous three years to the October 1, 2023, plan followed this process.

A release alerting the public to this October 1, 2023, renewal for the TANF plan was published on the Department of Health and Human Services website in December 2023.

Interested persons may obtain a copy of the TANF State Plan at <https://www.dhhs.nh.gov/news-events/public-notice> and offer comments or concerns to the Bureau of Family Assistance at any time.

ATTACHMENT C

MAINTENANCE OF EFFORT (FFY 2023)

- I. In New Hampshire, Maintenance of Effort (MOE) funds using the basic definition of a Temporary Assistance for Needy Families (TANF) client as defined in the State Plan include the following:
- TANF financial assistance grants for families who meet income eligibility standards at or below 100% of the payment standard (New Hampshire Employment Program, Family Assistance Program, Interim Disabled Parents Program, and Families with Older Children).
 - Nutritional Supplement for Working Families for families meeting income eligibility standards at or below 185% of FPG.
 - Employment and Training Support Services, including transportation, tuition, books, supplies, fees, car repairs, employment obstacles, job readiness training, life skills training, adult basic education, and counseling for participants of the New Hampshire Employment Program.
 - Administration costs associated with case management, information and referral, counseling, and related operational expense in the TANF program, eligibility administration, and service delivery.
 - Systems costs associated with TANF eligibility determination and maintenance, New HEIGHTS and Bridges.
- II. The following program employs MOE funds for services provided by Child Protective Service Workers at the Division of Children, Youth and Families (DCYF) and the Bureau of Family Assistance (BFA):
- DCYF and BFA provide case management, eligibility, crisis intervention, and connection to community-based services. This includes funds for staffing, including supervisors and managers. This program employs MOE funds for families with at least one child less than 18 years of age, and who meet income eligibility requirements under 185% of FPG.
- III. The following program employs MOE funds for families with at least one child less than 18 years of age, and who meet income eligibility requirements under 185% of FPG:
- DCYF provides a short-term, non-recurring benefit that is made as a community-based service to non-delinquent children and their families in situations involving credible reports of child abuse, neglect and abandonment, where there is imminent risk of child's removal from the home. These services include counseling, crisis intervention, and permanent housing emergency assistance.
- IV. The following program employs MOE funds through the Child Care Development Fund via the Department of Health and Human Services Child Development Bureau to families whose income does not exceed 250% FPG:
- Payments for child care services for families who are receiving TANF, transitioning off of TANF, or at risk of becoming dependent on TANF, and are working, going to school or looking for work.

ATTACHMENT D

NEW HAMPSHIRE ELIGIBILITY FOR EMERGENCY ASSISTANCE TO NEEDY FAMILIES WITH CHILDREN - AUTHORIZED SOLELY UNDER PRIOR LAW

KINDS OF EMERGENCIES COVERED

The following emergencies are covered, provided that the emergency has not been caused by a child's or relative's refusal without good cause to accept employment or training for employment.

1. EA Housing Benefits:

Homelessness, eviction, potential eviction, foreclosure, potential foreclosure, unsafe or unhealthy housing, utility shut-off, and lack of electricity, heat, hot water, or cooking fuel whenever a family is experiencing or is in imminent danger of these conditions.

2. EA Family Preservation and Support Benefits:

Abuse, neglect, or abandonment of children; imminent risk of a child's removal from the home; or urgent situation where continued presence in the home is not in the best interest of the child.

KINDS OF ASSISTANCE PROVIDED TO MEET EMERGENCY SITUATIONS

1. EA Housing Benefits:

Payments for rental security deposits to attain, or rental or mortgage (principal and interest only) arrearages to retain, affordable, safe, and healthy housing. Also, payments for utility deposits, utility arrearages, and deliveries of home heating fuel to provide the family with electricity, heat, hot water, or fuel for cooking. Payments are made through vendor payments only. Dollar caps (for deposits and fuel deliveries) and coverage periods (for arrearages) are set through rulemaking under the state's Administrative Procedures Act. Vendors are requested to return deposits to the Division. Payment of the daily bed rate for the temporary or transitional housing for a maximum 364-day service period, or less if sufficient to alleviate the emergency. Payments are made through DMHDS to DMHDS contract providers, who provide the actual housing and some limited services to the child or family.

2. EA Family Preservation and Support Benefits:

When a child is experiencing an emergency due to child abuse, neglect, abandonment; the imminent risk of the child's removal from the home; or an urgent situation where continued presence in the home is not in the best interest of the child **as determined by the Division for Children, Youth and Families (DCYF)**, NH Department of Health and Human Services, payments for any of the following services recommended by DCYF as necessary to alleviate the emergency may be authorized**: adolescent and family support; child in-home care; crisis intervention; diagnostic evaluation, when not covered by Title XIX; family-based services; foster care board and care, when not covered by Title IV-E; individual, family, and group outpatient counseling, including alcohol and drug abuse counseling, when not covered by Title XIX; intensive day programming, when not covered by Title XIX; outreach and tracking; parent aide; residential facility board and care, excluding the portion paid by Title XIX; respite care; supplemental foster care; therapeutic foster care board and care, when not covered by Title IV-E; accompanied transportation services*; child day care*, when not for employment and training purposes and when not covered by Social Service

Block Grant funds; dental services*, when not covered by Title XIX; medical services*, when not covered by Title XIX; and transportation*, when not covered by Title XIX.

* The asterisked services are available only in conjunction with one or more of the unasterisked services.

** Except when those payments are authorized through the juvenile justice system, effective January 1, 1996.

Family Preservation and Support benefits are limited to a maximum 364-day service period, or less if sufficient to alleviate the emergency. Payments are made through DCYF to DCYF contract providers, who deliver the actual services to the child and family.

KINDS OF SERVICES PROVIDED TO MEET THE EMERGENCY SITUATIONS

No direct services are provided for any emergency situations.